

JDF 2371	Motion to Seal Conviction Records Conduct No Longer Prohibited	
A. Court Type: (ex: County or District) Colorado County: El Paso Court Address:		<i>This box is for court use only.</i>
B. Parties to the Case Plaintiff: People of the State of Colorado vs. Defendant: Maria-Alejandra O'Shaughnessy-Whitfield		
		C. Case Details Number: 2024CR0011882-SUPPLEMENTAL Division/Courtroom:

1. Background

I submit this motion to seal conviction records under C.R.S. § 24-72-711.

2. My Information *(the Defendant)*

Date of Birth:
 Mailing Address:
 City, State, & Zip:
 Phone:
 Email:

Do you need an interpreter? ☐ No ☐ Yes, in *(language)*

I want to attend court events: ☐ In-person ☐ Virtually *(by phone or web video)*

To switch your choice:

Use form *JDF 76 – General Motion*. File at least 48 hours before an event.

3. Records to be Sealed

I request that the following conviction records be sealed:

- ☐ District or County Court
☐ Prosecuting Attorney
☐ Sheriff's Department

Case Number:

Mailing Address:

- ☐ Colorado Bureau of Investigation ***(Required)***
 ATTN Identification-Seals, 690 Kipling St., STE 3000, Lakewood, CO 80215

☐ Law Enforcement: (Agency Name) _____

Agency Mailing Address: _____

Agency Case Number: _____

☐ Law Enforcement: (Agency Name) _____

Agency Mailing Address: _____

Agency Case Number: _____

☐ Other: (Name) _____

Mailing Address: _____

☐ Other: (Name) _____

Mailing Address: _____

Arrest Number: (from fingerprint card) _____

Date of Arrest: _____

4. Offense Information

I was convicted of these offenses in this case:

☐ Petty Offense(s) of _____

☐ Misdemeanor Offense(s) of _____

☐ Felony Offense(s) of _____

Date Sentenced: _____

Probation/Parole Supervision Termination Date: _____

These offenses include: (check all that apply)

a) Drug Offenses

Were any of these drug offenses committed before October 1, 2013?

☐ Yes ☐ No

Note: The court determines the eligibility of drug offenses (committed before October 1, 2013) by the offense's classification at the time of sealing.

b) Psilocybin Offenses

Do the charges involve psilocybin or psilocyn (under the statutes listed below), and is the act no longer unlawful under C.R.S. § 18-18-434?

Statutes: C.R.S. §§ 18-18-403.5, 404, 405, 411, 412.7, 429, and 430.

☐ Yes ☐ No

5. Eligibility

This conviction is for an offense that is no longer prohibited by statute.

6. Criminal Record

Note: A criminal history record is not required.

7. Certificate of Service

On *(enter service date)* _____

I certify that I sent a copy of this document to the prosecuting attorney by: *(select one)*

- ☐ Colorado Courts E-Filing. *(only available to lawyers)*
- ☐ Regular Mail, addressed to: *(name)* _____
Full address: _____
- ☐ Other: *(explain)* _____

8. Sign & Date

Print Your Name:

Signature: _____

Date: _____

Counsel Signature: *(if any)* _____

JDF 2374	Order to Seal Conviction Records Conduct No Longer Prohibited
A. Court Information Type: (ex: County or District) Colorado County: El Paso Court Address:	<i>This box is for court use only.</i>
B. Parties to the Case Plaintiff: The People of the State of Colorado vs. Defendant: Maria-Alejandra O'Shaughnessy-Whitfield	
	C. Case Details Number: 2024CR0011882-SUPPLEMENTAL Division: _____ Courtroom: _____

————— **The Court Completes the Rest of this Form** —————

1. Background

The Defendant seeks to seal their conviction records under C.R.S. § 24-72-711, based on the fact that the underlying conduct is no longer prohibited under state law.

2. Defendant's Information

- a) Full Name:
- b) Birth Date:
- c) Mailing Address:
City, State, and Zip Code:

3. Court Findings

The Court finds as follows:

☐ **a) Conduct No Longer Unlawful**

The Defendant was convicted of a charge that is no longer unlawful under statute.

☐ **b) Proper Filing and Notice**

The Defendant filed their motion after the date of final disposition or release from supervision, whichever was later. They gave proper notice of their motion to the District Attorney.

☐ **c) Objection Not Filed**

It has been at least forty-two days since the motion was filed, and the District Attorney has not filed an objection.

☐ **d) Other Findings**

4. Court Orders

a) Records Sealed

Criminal records information relating to and contained in:

1) The above-captioned case; and

2) Law Enforcement Agency: _____

Case number: _____

Arrest number: _____

The Records must be sealed immediately, except for basic identifying information. If an inquiry is made, the Person in Interest and Criminal Justice Agency may reply that no such records exist. This order applies to public and private custodians of the records.

b) Case Sealed

The Court directs the Clerk of Court to seal the above-captioned case.

c) Service

The Court's clerk shall provide a copy of this Order to the Colorado Bureau of Investigation (CBI) and every records custodian listed in the Petition.

d) Other Orders

So Ordered

By: _____
☐ Judge ☐ Magistrate

Dated: _____